

24SMCV03001 24SMCV03001

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Case Number: 24SMCV03001 Hearing Date: August 21, 2026 Dept: M

CASE NAME: Newton, et

al., v. Spillman

CASE NO.: 24SMCV03001

MOTION: Motion

to Compel Further Responses

HEARING DATE: 8/20/2026

Legal

Standard

In

the absence of contrary court order, a civil litigant's right to discovery is broad. "[A]ny party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action . . . if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence." (CCP § 2017.010; see *Davies v. Superior Court* (1984) 36 Cal.3d 291, 301.) Section 2017.020(a) vests the Court with authority to limit the scope of discovery if the burden, expense, or intrusiveness of the discovery sought "clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence." CCP § 2019.030 directs the Court to consider the needs of the case, amount in controversy, and the importance of the issues at stake in the litigation, and to consider whether the discovery being sought is unreasonably cumulative or duplicative, or is obtainable by a more convenient or less expensive or less burdensome way, when deciding whether to

restrict the frequency or extent of use of an authorized discovery method.

CCP section 2030.220(a) requires

that “[e]ach answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits.” Pursuant to CCP section 2030.300, a party may move to compel further responses to a form interrogatory if the other party’s answer is “evasive or incomplete.” The responding party has the burden of justifying the objections to the form and special interrogatories. (*Coy v. Superior Court* (1962) 58 Cal.2d 210, 220-221.)

A motion to compel further responses to a demand for inspection or production of documents may be brought based on: (1) incomplete statements of compliance; (2) inadequate, evasive or incomplete claims of inability to comply; or (3) unmerited or overly generalized objections. (CCP, § 2031.310(c).) A motion to compel further responses must set forth specific facts showing “good cause” justifying the discovery sought by the demand and must be accompanied by a declaration showing a “reasonable and good faith attempt” to resolve the issues outside of court. (CCP §§ 2016.040, 2031.310(b).) Absent a claim of privilege or attorney work product, the moving party meets its burden of showing good cause by a fact-specific showing of relevance. (*Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.) If the moving party has shown good cause for the RPDs, the burden is on the objecting party to justify the objections. (*Ibid.*)

Analysis

Defendant Eric D. Spillman moves to compel Plaintiff Le’roy Newton to: (1) serve further verified responses to Spillman’s Requests for Production of Documents (Set Two) (“RPDs”), Nos. 12-19, 23-26, and 33-37; (2) produce an adequate privilege log for all redacted documents withheld on the basis of privilege; and (3) serve further verified responses to Spillman’s Special Interrogatories (Set Two) (“SROG”), Nos. 39, 53, 55, 56, 60, 61, and 63. Defendant also seeks monetary sanctions against Plaintiff and/or Plaintiff’s counsel in the amount of \$21,060.00 and \$12,660.00. Plaintiff also requests a discovery referee.

RPD Nos. 12-19

A further

response is required to each of these RPDs. These RPDs request documents relating to certain May 2014 and June 2014 accidents, including documents relating to treatment received, insurance claims made, and settlements received. Newton's amended responses each state in substantive part: "After a diligent search and reasonable inquiry, Plaintiff is unable to comply with this request because no responsive documents are in Plaintiff's possession, custody, or control." Newton does not specify whether responsive documents have never existed, have been destroyed, have been lost, misplaced, or stolen, or the name and address of any natural person or organization known or believed to have possession, custody, or control of that item or category of item. (See CCP § 2031.230 [stating that a statement of inability to comply "shall" provide such information].) The initial superseded responses made conclusory assertions stating all of the above conditions existed, which is internally contradictory and not well-taken. The Court also notes that, based on Newton's other discovery responses (e.g., SROG no. 37), Plaintiff likely has control of responsive documents, or information sufficient to identify other persons who may have such documents.

Newton has not provided any privilege log to justify its attorney-client/work product objections. To the extent that any documents are withheld on the basis of such privileges, the Court will require Newton provide a privilege log. (CCP § 2031.240(c).)

RPD nos. 23-24

A further response is required to each of these RPDs. These RPDs request documents regarding a "2017 405 Accident," specifically, documents relating to insurance claims made and the \$100,000.00 settlement received. In the amended responses, Newton only provides objections. Newton fails to justify the objections. Documents regarding the insurance claims and settlement of the 2017 405 accident are reasonably calculated to lead to the discovery of admissible evidence concerning Newton's damages, including whether such damages claimed here overlap with the 2017 injuries or entirely pre-exist the 2022 collision. To the extent that Newton objects on privacy grounds, such objections would be overruled as to documents related to Plaintiff's prior injuries. The documents do not constitute a serious violation of Plaintiff's privacy, especially in light of the injuries claimed in the instant action. (See *Hill v. National Collegiate Athletic Assn.* (1994) 7 Cal.4th 1, 35-37 [party asserting a privacy right generally must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious];

Pioneer Electronics (USA), Inc. v. Superior Court (2007) 40 Cal.4th 360, 371 [courts must carefully balance a right of privacy against the interest in having just litigation]; see also Williams v. Superior Court (2017) 3 Cal.5th 531, 552 [if there is a serious invasion of a constitutional right to privacy, the party seeking the evidence must establish that the information sought is directly relevant and could not be discovered through less intrusive means].) To the extent that any documents are withheld on the basis of attorney-client/work product privileges, the Court will require Newton provide a privilege log. (CCP § 2031.240(c).)

RPD no. 25: All DOCUMENTS relating to YOUR representation by the Law Office of Boroth Chay in connection with the 2017 405 ACCIDENT.

A further response is required. Newton provides an objections-only response based entirely on attorney-client/work product privileges without providing a privilege log. Plaintiff does not address this requirement in opposition. Certainly, not all documents responsive to this request would be subject to such privileges. Newton will have to provide a further response and, to the extent that any documents are withheld on the basis of the privileges, must also provide a privilege log.

RPD no. 26: All correspondence between YOU and Progressive Insurance relating to the 2017 405 ACCIDENT.

A further response is required. Newton provides an objections-only response based entirely on attorney-client/work product privileges, as well as settlement privileges under Evidence Code section 1152. Plaintiff does not provide a privilege log. Plaintiff does not address this requirement in opposition. Certainly, not all documents responsive to this request would be subject to such privileges. Plaintiff will have to provide a further response and, to the extent that any documents are withheld on the basis of the privileges, must also provide a privilege log.

As to Evidence Code § 1152, Newton does not demonstrate that it would apply. Section 1152 states in relevant part: "Evidence that a person has, in compromise or from humanitarian motives, furnished or offered or promised to furnish money or any other thing, act, or service to another who has sustained or will sustain or claims that he or she has

sustained or will sustain loss or damage, as well as any conduct or statements made in negotiation thereof, is inadmissible to prove his or her liability for the loss or damage or any part of it." Presumably, Newton was injured and received a settlement in an unrelated case. Any settlement or negotiations for that case would not be offered to prove Newton's liability on those unrelated injuries.

RPD no. 33-37

These RPDs

request all communications, without limitation, between Plaintiff and a) any other person within 24 hours preceding the subject incident; b) Guillermo Bolanos within one year preceding to the incident; c) Bolanos from the date of the incident through to the present; d) David Cannell within one year preceding to the incident; and e) Cannell from the date of the incident through to the present.

Newton provides an objection only response based upon privacy and attorney-client/work product privileges.

Newton raises fair privacy objections

on behalf of himself and third parties concerning the content of private communications. (See *People v. Chapman* (1984) 36 Cal. 3d 98, 109 [individuals have a reasonable expectation of privacy in their phone records]; see also *Paley v. Superior Court* (1993), 18 Cal.App.4th 919, 933 [the right of privacy under federal and state Constitutions extends beyond the confidential communications protected by statute].) The Court is not persuaded that communications between Plaintiff and the identified third persons, without limitation and preceding the incident, would be relevant or lead to the discovery of admissible evidence. Further, Spillman does not explain how all communications between Plaintiff and any other third party after the subject incident, without a subject matter limitation, would be relevant or lead to the discovery of admissible evidence. Accordingly, the Court will sustain the privacy objections.

SROG No. 39: IDENTIFY each HEALTH CARE PROVIDER who treated YOU for injuries arising from the MAY 2014 I-10 ACCIDENT.

A further response is required.

Newton's amended response does not address the May 2014 accident.

SROG No. 53: IDENTIFY each DOCUMENT relating to the 2017 405 ACCIDENT.

A further

response is required. Plaintiff's amended response states, in substance, "Medical records and bills have been attached to as Exhibit A to request for production of documents." Defendant defines "IDENTIFY" documents as meaning "to provide a description of the document(s) and the name of the person or entity in control of the document(s) sufficient to allow the production to be determined". The amended response does not identify the names of the persons/entities in control of said documents.

SROG No. 55: IDENTIFY each HEALTH CARE PROVIDER who treated YOU for injuries arising from the 2017 405 ACCIDENT.

A further response is required.

Plaintiff's amended response only refers to a set of produced exhibits, and does not identify any health care providers. The record referral is improper, since the SROG would not "necessitate the preparation or the making of a compilation, abstract, audit, or summary of or from" documents. (CCP §2030.230.)

SROG No. 56: Describe each injury YOU claimed to have sustained as a result of the 2017 405

ACCIDENT.

A further

response is required. Plaintiff's amended response only refers to a set of produced exhibits, but does not identify any injuries as a result of the 2017 accident. The record referral is improper, since the SROG would not "necessitate the preparation or the making of a compilation, abstract, audit, or summary of or from" documents. (CCP §2030.230.)

SROG No. 60: State the case number of any lawsuit filed arising from the 2017 405 ACCIDENT.

A further response is required.

Plaintiff's amended response only refers to claims made against certain insurance companies, but does not identify any lawsuits filed, if any. The

record referral is improper, since the SROG would not “necessitate the preparation or the making of a compilation, abstract, audit, or summary of or from” documents. (CCP §2030.230.)

SROG No. 61: State whether YOUR March 22, 2018 lumbar spine surgery at Unicare Surgery Center was related to injuries from the 2017 405 ACCIDENT.

A further response is required.

Plaintiff's amended response only refers to refers to a set of produced exhibits, but does not state whether or not the lumbar spine surgery was related to the 2017 accident. The record referral is improper, since the SROG would not “necessitate the preparation or the making of a compilation, abstract, audit, or summary of or from” documents. (CCP §2030.230.)

SROG No. 63: Other than the accidents identified above, IDENTIFY each motor vehicle accident in which YOU were involved from January 1, 2010 to the present.

No further response is required. Plaintiff's amended response states that he does not recall any other accidents after making a diligent search and reasonable inquiry. Defendant argues that plaintiff has made an inconsistent statement, since he refers to both a May 2014 and June 2014 accidents. However, SROGs nos. 43 and 45 and responses thereto identify those accidents. SROG no. 63 only requests identification of accidents “other than” those identified above. Thus, those accidents would not be responsive to SROG no. 63.

Conclusion

Accordingly, the motions are GRANTED in part and DENIED in part. Further responses are ordered with in 10 days as to a) RPD nos. 12-19 and 23-26; and b) SROG nos. 39, 53, 55, 56, 60 and 61. Mandatory sanctions are imposed against Newton and his counsel of record, jointly and severally, in the reduced total amount of \$4,920.00. The Court finds no legal or factual basis to treble discovery sanctions. Sanctions are payable to counsel within 30 days.